Chinyerem Kalu @ Nancy @ Saucy vs The State (Nct Of Delhi) on 16 September, 2022

Author: Anoop Kumar Mendiratta

Bench: Anoop Kumar Mendiratta

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1761/2022
CHINYEREM KALU @ NANCY @ SAUCY ..... Petitio
Through: Mr. Girish Kumar Sharma, Ms. Sushma Sharma, Mr. Karan Verma and Ms Aayushi Gaur, Advocates.
versus
THE STATE (NCT OF DELHI) ..... Respond
Through: Mr. Laksh Khanna, APP for State along with SI Sandeep Mathur.
CORAM:
HON'BLE MR. JUSTICE ANOOP KUMAR MENDIRATTA
ORDER

% 16.09.2022

1. An application has been preferred on behalf of the petitioner Chinyerem Kalu @ Nancy @ Saucy under Section 439 Cr.PC read with Section 482 Cr.PC. for grant of regular bail in FIR No. 525/2021 under Sections 419/420/467/468/471/201/120B/34 IPC and Section 66 (D) of Information Technology and Section 14 of Foreigners Act registered at Police Station Khyala.

2. In brief, as per the case of petitioner, FIR was registered on complaint of one Mr. Naresh Nagar about cyber fraud. He complained that he came across a lady namely Riona Cahil, who introduced herself as a resident of Austin, Texas, United States through dating app called 'Hinge'. After chatting for a week on 'Hinge' App, she contacted complainant on whatsapp through her mobile number. She informed that she works for a company called 'the Pharmaceutical Research and Manufacturers of America' in short called 'PhRMA'. On 26.04.2021, she gave the petitioner, a business proposal stating that her company used to buy a product called Jatoba pods from India through a colleague of hers who now has left the organization. She proposed that she can introduce complainant to her company as the supplier of Jatoba Pods in India and then Riona Cahil introduced him to the supplier in India (Bengaluru) named Ankitha. Ankitha quoted him price of Rs.22,500/- per 100 gms sachet which comes to about USD 300.

3. It is further alleged that on 28.04.2021, the complainant was contacted by someone posing as Dr. Marshall Flint, the procurement head of 'PhRMA' from Austin, Texas. He stated that number has been given to him by his colleague and asked if complainant could supply Jatoba Pods, to which complainant agreed at rate of $580/sachet and same was accepted. In aforesaid background, he

contacted Ankitha and paid Rs.13.5 lacs against which some sachets of Jatoba Pods were received.

4. It is further the case of the prosecution that actual name of Jatoba Pods, delivered to the complainant was confirmed as Afzelia Africana Seeds and the price of the same was found between 15,000 to 25,000/- per kilogram in Indian market whereas accused quoted a price of Rs.22,500/- per 100 gm sachet for Jatoba Pods. The accused persons as such are stated to have delivered Afzelia Africana Seeds instead of Jatoba Pods.

During investigation, Riona Cahil was identified as Johnna Hunt from Vancouver, British Columbia whose photographs were used by the accused in name of Riona Cahil. Further, as per the timing of booking of the courier and phone call records, alleged Ankitha was identified as Perumal Stella and the other lady was identified as Chinyerem Kalu @ Nancy @ Saucy who accompanied Ankitha. The money transactions were further found between Perumal Stella and one Akinola Timothy after the payment was made by the complainant in the account of Tschemba. Also, the call detail records were found between all the three accused namely Chinyerem Kalu @ Nancy @ Saucy (petitioner), Perumal Stella and Akinola Timothy. The mobile phone used in making calls to complainant was recovered from Perumal Stella.

5. Learned counsel for the petitioner submits that the petitioner was not the recipient of money and she has been in custody for a period of 14 months. Charge-sheet is stated to have been filed before the learned Trial Court.

6. On the other hand, the application has been opposed by the learned APP for the State. It is submitted that the petitioner is one of the master minds and was associated in the commission of the offence. Sim cards and phones are stated to have further been recovered at the instance of the petitioner. It is also submitted that the petitioner is a foreign national and the possibility of her jumping the bail cannot be ruled out.

7. I have given considered thought to the contentions raised. The charge-sheet has already been filed after custodial interrogation of the petitioner. Considering the number of witnesses, the disposal of the case is likely to take some time. The co-accused Akinola Timothy Olwasen has already been released on bail vide order dated 04.05.2022 in Bail Application No. 1025/2022.

Considering the facts and circumstances and since the petitioner is a woman, she is admitted to bail on furnishing personal bond in the sum of Rs.30,000/- (Rupees Thirty Thousand only) with one surety in the like amount to the satisfaction of the learned trial court and subject to following conditions :

> (i) The petitioner shall provide her mobile number to the Investigating Officer (IO) concerned/SHO concerned at the time of release, which shall be kept in working conditions at all times.

The petitioner shall not switch-off, or change the same without prior intimation to the IO concerned, during the period of bail;

(ii) The petitioner shall not leave India without the prior permission of the concerned trial court;

(iii) The petitioner shall not indulge in any criminal activity or any illegal activities during the bail period;

(iv) The petitioner shall not communicate with, or come into contact with the prosecution witnesses, or any member of the victim's family, or tamper with the evidence of the case;

(v) The address of the petitioner shall also be verified prior to her release.

Application is accordingly disposed of.

A copy of this order be forwarded to the learned trial court for information and compliance.

ANOOP KUMAR MENDIRATTA, J.

SEPTEMBER 16, 2022/A